
Appeal Decision

Site visit made on 6 July 2026

by **D Marley BA (Hons) MSc MRTPI**

an Inspector appointed by the Secretary of State

Decision date: 23 September 2026

Appeal Ref: 6008866

The Paddocks, Bridgnorth Road, Stourton, Stourbridge DY7 6QZ

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Mr Patrick Mochan against the decision of South Staffordshire District Council.
 - The application Ref is 25/00721/FUL.
 - The development proposed is the erection of stables for the keeping of horses.
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Decision

1. The appeal is dismissed.

Preliminary Matters

2. I have removed wording from the description of development which does not comprise a description of development.
3. The Council has identified that it is in the process of adopting a new local plan. On the evidence before me, the plan has recently undergone consultation relating to main modifications required to make the plan sound. The relevant policies identified in the emerging plan are not on the submitted evidence substantively different to those in the adopted local plan. Both parties identify that the policies of the emerging plan should be afforded limited weight at the current time. I see no reason to disagree.
4. The application form identifies that development work had commenced, but was not complete. At my site visit I observed differences between the work completed to date and the proposed plans, in particular that the stable block on site was smaller than that proposed. I have therefore determined the proposal on the basis of the submitted plans, as that is the scheme for which permission is sought. Certain aspects on the submitted plans, such as the hardstanding, had already been constructed, and the plans identify a number of boundary treatments. Where applicable, I have made reference to the existence of certain aspects of retrospective development in my decision.
5. Following submission of the appeal, a new National Planning Policy Framework (the 'Framework') was published on 17 August 2026. The main parties were given an opportunity to comment on any implications for the appeal, and I have taken responses received into account in reaching my decision.

Main Issues

6. The main issues are:

- whether the proposal would be inappropriate development in the Green Belt having regard to the National Planning Policy Framework and relevant development plan policies;
- the effect of the proposal on the character and appearance of the area;
- the effect of the proposal on highway safety; and
- if the proposal is found to be inappropriate development whether any harm by reason of inappropriateness, and any other harm, would be clearly outweighed by other considerations, so as to amount to the very special circumstances required to justify the proposal.

Reasons

Whether inappropriate development

7. On the evidence before me, prior to the works taking place there was a building on the site which has been recently replaced, and the site has been used for equestrian purposes for a significant period. Excepting the site access, much of the boundary to the front of the site is formed of hedgerow and tree planting, though with intervening gaps when viewed from the road. There is further tree and hedgerow planting along the road nearby.
8. The proposal constitutes the erection of a stables, and includes hardcore within the site, tarmac at the access, and fencing and gates to the front. The fencing to the front of the site is partly constructed of close board fencing. The fence would be close to the road, with some planting proposed. The access and some of the fencing along the front boundary as constructed is visible from the road, including through intervening gaps in vegetation.
9. Policy GB7 of the Framework identifies that the provision of appropriate facilities (in connection with the existing use of land or a change of use), including buildings, for outdoor recreation, is not inappropriate provided that the impact on the openness of the Green Belt is minimised, and there would not be a significant conflict with the Green Belt purposes. Policy GB1 of the Core Strategy Development Plan Document (2012) (the 'Core Strategy') identifies that appropriate small-scale facilities for outdoor recreation which preserve the openness of the Green Belt and which do not conflict with its purposes will normally be permitted.
10. The Council does not raise an objection that, in isolation, the proposed stable block would fail to preserve the openness of the Green Belt or conflict with its purposes. Given the nature of the proposed use, and the past presence of a building of broadly similar size and scale, following my site visit I see no reason to disagree. The effect on the openness of the Green Belt and its purposes therefore relates to the area of hardcore and tarmac, as well as the fencing, and gate to the front.
11. The proposal is for equestrian purposes, and is therefore in connection with the existing use of the land. Equally, a means of enclosure for security and safety

purposes at an access to where horses are kept, alongside a parking and turning area may in principle be appropriate facilities for equestrian uses. Given the equestrian use, the proposal is one for outdoor recreation.

12. In terms of the impact on openness, Planning Practice Guidance (the 'PPG') advises that openness is capable of having both spatial and visual aspects. Whilst parts of the site may not be visible from the road, the access point and other parts of the front boundary are. The plans identify that closeboard fencing would be installed along much of the front of the site, though precise elevations were not provided. Closeboard fencing was also present at my site visit. Even were closeboard fencing installed in line with the submitted plans that was a different design to that I observed at my site visit, the use of closeboard fencing would result in a sudden insertion of built form of a solid appearance on a largely undeveloped section of road. Whilst additional planting is proposed, the fence would likely remain visible through intervening gaps in the planting. The proposal would therefore diminish the open qualities of the site and the surrounding area, and be harmful to the visual openness of the Green Belt. Given this, the proposal does not minimise the impact on the openness of the Green Belt.
13. Whilst the hardcore base and tarmacked access do not, given its limited arrangement, profile and materials used, result in a reduction in openness, this is a separate matter to the harm I have identified. Equally, whilst the gate as installed may have some decorative features, no elevation plans are before me and excepting its height no further details were included on the submitted plans regarding the gate itself. As such I cannot conclude the gate as constructed forms part of the proposal before me. In the absence of specific details relating to the gate, a condition may have been sufficient to avoid harm to the Green Belt, had I not found harm arising in other regards.
14. Nevertheless, the proposal includes built development that would not minimise the impact on the openness of the Green Belt. Therefore, even were I to conclude there would not be a significant conflict with the Green Belt purposes, the proposal would not fall within the identified exception to inappropriate development set out in the Framework.
15. The appellant considers that the fence should fall outside of consideration in terms of Green Belt impact, as they consider this element to be permitted development. However, the fencing forms part of a planning application for the site as a whole, and I have considered it in that context. A letter may have been submitted to the Council on this point, however the Council's statement nevertheless identifies that this matter is disputed. It is open to the appellant to investigate whether elements of the proposal benefit from permitted development rights, however given the submissions of the parties determinative details on this matter are not before me. In the context of an appeal under Section 78 of the Act, it is not within my remit to determine whether parts of a development are lawful. Given the dispute between the parties, I afford this matter limited weight and as such, this does not lead me to an alternative conclusion on this issue.
16. Whilst my attention has been directed to a number of appeals whereby stables were found to constitute not inappropriate development, on the evidence before me a number of these relate to the erection of a stable block only or include elements which are not in dispute in this appeal, or excludes similar development

from consideration as part of those appeals. As such, these appeals are not directly comparable.

17. Given the above, the proposal would constitute inappropriate development in the Green Belt, having regard to the National Planning Policy Framework and relevant development plan policies. The proposal would conflict with Policy GB6 and GB7 of the Framework, which identify that development in the Green Belt is inappropriate unless it falls within one of the categories in policy GB7 and that to constitute not inappropriate development proposals for outdoor recreation in the Green Belt should, amongst other matters, minimise the impact on the openness of the Green Belt. Substantial weight is afforded to harm to the Green Belt. The proposal would also conflict with Policy GB1 of the Core Strategy insofar as it requires proposals for outdoor recreation in the Green Belt to preserve the openness of the Green Belt.
18. The appellant considers certain aspects of Policy GB1 of the Core Strategy to be inconsistent with national policy. With reference to my reasoning above, the requirement to preserve the openness of the Green Belt in Policy GB1 of the Core Strategy does not reflect the revised wording in the Framework. I shall return to this matter subsequently in my decision.

Character and appearance

19. The appeal site is in equestrian use located along a stretch of road that is largely undeveloped in character, with extensive hedgerow and trees largely forming the boundary with the highway. There are a small number of scattered access points to residential and other development in proximity to the site. Some residential access points include gates, walls or railings, and nearby non-residential development access points are less developed in character.
20. The proposal would include a stables and hardstanding. The front boundary treatment would include close boarded fencing. Some additional planting is proposed.
21. Given the green and verdant nature of nearby trees and hedgerow that forms much of the boundary adjacent to the road, closeboard fencing would appear as an isolated section of development along this stretch of the road. The appellant considers the area in general to be one of mixed use. However, the site itself is largely surrounded by paddocks, fields or agricultural uses, with some other scattered development nearby. The insertion of closeboard fencing would appear out of context with the surrounding verdant character, and contrast with the prevailing undeveloped character in the immediate proximity of the site.
22. There are a small number of dwellings in proximity to the site that are walled or fitted with railings. However, these entrances are residential in character, and clearly relate to the dwellings which they serve. Non-residential entrances to which my attention has been directed, such as Living Springs or the Rugby Club, are notably less developed in character, and are materially different to the appeal proposal before me.
23. There is some screening to the front of the appeal site, and the proposal would also include some additional planting. It may also have been possible to secure some further planting by condition. Nevertheless, given its size and arrangement,

some of the fencing would as noted be likely to remain visible through any gaps in the vegetation. As such, this would not mitigate the harm identified.

24. Given the existing equestrian use, neither the subdivision of the site into paddocks, the hardstanding, nor the erection of the proposed stable building would, in isolation, appear out of character with the existing use. Equally, the appellant's identification that the proposal is for the keeping, rather than grazing, of horses, has not been substantively challenged, and as such based on the submissions I am satisfied that the proposal would not result in negative landscape impacts as a result of overstocking. I have additionally noted that matters related to the gate could have been secured by condition. However, this does not mitigate the harm identified.
25. Given the above, the proposal would have a harmful effect on the character and appearance of the area, and in the context of the scale of the proposal the extent of harm would be moderate. The proposal would conflict with Policies EV7 and EQ4 of the Core Strategy. Amongst other matters, these policies require proposals to take into account the characteristics of its surroundings and be sympathetic to rural character.
26. Whilst the appellant considers Policy EQ4 of the Core Strategy to be inconsistent with national policy, the matter identified by the appellant relates to the retention and strengthening of the components of landscape character. Policy DP3 of the Framework identifies that proposals should respond to their context, including the character and features of their site and its setting, so that they integrate with and enhance their surroundings. Given this wording, I therefore find no inconsistency between the policy and the Framework in this regard.

Highway safety

27. On the evidence before me, there was previously an agricultural access to the site. At my site visit, I observed that there was good visibility in both directions from the access point, and vehicles using the road were travelling at moderate speeds. The access point was surfaced in a bound material.
28. Whilst the Council has made reference to a specification for the resurfacing of the access, no such specification is before me. Given the surfacing of the access to the site in a bound material, I see no reason why the material used would not be suitable for vehicles to enter or exit the site.
29. In addition, given the visibility available to and from the access, vehicles exiting the site would likely have sufficient warning of approaching vehicles, as would vehicles approaching the appeal site have of vehicles seeking to exit. I am satisfied therefore that safe and suitable access would be achieved for vehicles arriving at or departing the site.
30. Whilst it may be the case that a permit was required prior to the installation of the access and the installation may have included some operations to highways land, these are separate matters and do not affect my consideration of the planning merits of the proposal.
31. Equally, although reference has been made to the potential impacts on the transport network, as the site historically included an agricultural access, there would be likely to have been the coming and going of vehicles to and from the site.

Whilst the pattern of visits associated with the proposed stables may be different, the extent of difference even to a historic agricultural use would not be such that significant impacts to the transport network would be likely.

32. Given the above, the proposal would not have a harmful effect on highway safety. The Council has not directed my attention to conflict with any specific policy of the development plan related to this matter, and I therefore find no conflict with the Core Strategy in this regard. Equally, the proposal would not be contrary to Policy TR6 of the Framework which identifies that proposals should be refused if they would have a severe adverse impact on the transport network (in terms of capacity and congestion, including cumulative impacts), or an unacceptable impact on highway safety.

Other considerations and whether very special circumstances exist

33. The proposal constitutes inappropriate development in the Green Belt, and causes harm to its openness. Policy GB6 of the Framework identifies that substantial weight should be given to the harm to the Green Belt, including harm to its openness. The Policy further identifies that inappropriate development is, by definition, harmful to the Green Belt and should not be approved except in very special circumstances. Such circumstances will not exist unless the potential harm to the Green Belt by reason of inappropriateness and any other harm resulting from the proposed development, is clearly outweighed by other considerations.
34. Whilst the Council has raised concerns as to whether the proposal would be practical for a horse's wellbeing, the appellant has set out that alternative and supplementary feed would be provided and the proposal would allow for a store or tack room. The proposal would therefore help facilitate the keeping of horses, and offer opportunities to improve animal welfare. The provision of a means of enclosure would also provide safety and security for the horses, and the provision of an access and hardstanding would improve access to the site both for veterinary treatment and horse transportation. I afford this matter moderate weight.
35. There is extensive Green Belt across the local authority area, and opportunities to locate the proposal outside the Green Belt may be limited. However, on the evidence before me I see no reason why a proposal could not come forward which would both facilitate the objectives of the appellant and not result in harm to the Green Belt. I therefore afford this matter limited positive weight.
36. The proposal would result in harm to the Green Belt, to which in accordance with Policy GB6 of the Framework I afford substantial weight. Whilst, given it does not reflect the latest provisions of the Framework, I give very limited weight to the conflict with the identified part of Policy GB1 of the Core Strategy, this does not diminish the weight I have afforded to the harm to the Green Belt.
37. The proposal would also harm the character and appearance of the area, and the Framework advises that developments should respond to their context and integrate with and enhance their surroundings. I afford the harm in this matter moderate weight.
38. When weighed against the harm identified, the other considerations listed above do not either individually or cumulatively clearly outweigh that harm. The very special circumstances required to justify the development therefore do not exist.

Given this, Policy GB6 of the Framework identifies that such development should not be approved.

Other Matters

- 39. I acknowledge the appellant's concerns over the Council's handling of the application. However, this is not a matter which has any bearing on the planning merits before me in this appeal, and does not alter my findings.
- 40. There is some local support for the proposal, however this does not justify a proposal I have found to be harmful.

Conclusion

- 41. The proposal would conflict with the development plan read as a whole and material considerations, including the Framework, do not indicate that the appeal should be decided other than in accordance with it. Therefore, for the reasons given above, the appeal should be dismissed.

D Marley

INSPECTOR